

TERMS & CONDITIONS FOR USE

PLEASE READ OUR PRIVACY TERMS & CONDITIONS BEFORE USING OUR APP, WEBSITE, ALL SERVICES & ALL PRODUCTS.

Welcome to DreamStar Baby GarbhaSanskar App (the 'App'). This App is operated by Dr. Sonal Jain Jayaswal, her office at Shivlok, J.P. Height Building, 8th Floor, B Wing, Near Gondwana Square, Bairamji Town, Nagpur - 440013, India.

(Hereinafter referred to as the 'Proprietary Firm/Firm', which expression shall mean and include its officers, successors and permitted assigns).

The App provides guidance for to Planning & Pregnant Couples. Users will get many Pregnancy relevant contents such as Daily 25+ Activities, Reports, Workshops, Weekly Classes, Personal Counselling & other learning about child development from the womb and receive informational messages. The Proprietary Firm may provide Material Kit, other Products and third-party services & products also.

1. APPLICABILITY AND AMENDMENT OF TERMS

1.1 These terms and conditions of use ('Terms of Use') and the privacy policy ('Privacy Policy') apply to all visitors and users of the App ('users' or 'you'). We request you to carefully go through these Terms of Use and the Privacy Policy before you decide to access this App or use the Services made available on the App. These Terms of Use and the Privacy Policy, together constitute a legal agreement ('Agreement') between you and the Proprietary Firm in connection with your visit to the App and your use of other all Services. The above- mentioned constituents of the Agreement shall at all times, be read together and shall be deemed to be incorporated herein by reference.

1.2 Your use of the App will signify your acceptance of the Agreement and your agreement to be legally bound by the same. If you do not agree to, or wish to, be bound by the terms of the Agreement, you may not access or otherwise use the App.

1.3 We reserve the right to modify or terminate any portion of the App by The Proprietary Firm or amend the Terms of Use for any reason, without notice and without liability to you or any third party. To make sure you are aware of any changes, please review the Agreement. The Proprietary Firm may require you to provide your consent to the Agreement, as updated, in a specified manner before any further use of the App. If no such separate consent is sought, your continued use of the App will constitute your acceptance of such changes.

1.4 Nothing in the Agreement should be construed to confer any rights to third-party beneficiaries.

2. REGISTRATION AND ACCESS

2.1 If you wish to avail the Services, you will have to register on the App and become a registered user. By registering on the App, you agree that you are appointing the Proprietary Firm to provide you the Services on the terms of the Agreement and on such terms as maybe agreed. To register on the App, you will have to provide certain information such as your name, mobile number, LMP or EDD Date, email ID and password in relation to the Services. 2.2 Registration is only a one-time process and if you have previously registered on the App, you may log-in into your account using the same credentials as provided by you during the registration process.

2.3 We reserve the right to refuse access to the App, to terminate accounts, remove or edit content at our discretion.

2.4 We will try to make the App error-free. Your access to the App may be occasionally suspended or restricted to allow for repairs, maintenance, or for the introduction of new facilities or services. However, we do not take responsibility for internet-related issues at your end.

3. INTERACTION ON THE APP

3.1 You understand and agree that any interactions and associated issues with other users of the Service on the App including but not limited to your health issues and your experiences is strictly between you and the other users (Ayurvedic Doctors, Personal Counsellor etc. all, associated to our course). You shall not hold the Proprietary Firm responsible for any such interactions and associated issues. The Proprietary Firm is not involved in providing any healthcare or medical advice or diagnosis and hence is not responsible for any outcome between you and the doctor, hospital or any other healthcare provider ('Provider') you ultimately interact with, pursuant to any reviews or recommendations on the App.

If you decide to engage with a certain Provider to provide medical services to you, you do so at your own risk. The results of any reviews or recommendations on the App for any hospitals or medical services should not be construed as an endorsement by the Proprietary Firm or the App of any such Provider. The Proprietary Firm shall not be responsible for any breach of service or service deficiency by any Provider or any consequent losses, conditions or injuries you may incur as a result of the Services offered by the Providers. We cannot assure nor guarantee the ability or intent of the Provider to fulfil their obligations towards you. We are not agents or representatives of Service Providers and do not provide any warranties regarding the quality of services offered by Service Providers. We advise you to perform your own research and investigation prior to selecting a Provider.

3.2 You understand that once you register as a User on the App, you will receive SMS or WhatsApp or other App messages from us on your registered mobile number. These messages could relate to your registration, any updates and promotions that are undertaken by us. Please note that we will send these SMS or WhatsApp or other App messages only to the registered mobile number or such other number that you may designate for any particular purpose.

4. NO DOCTOR - PATIENT RELATIONSHIP

4.1 Please note that some of the content, text, data, graphics, images, information, suggestions, guidance, and other material (collectively, 'Information') that may be available on the App may be provided by individuals in the medical profession. The provision of such Information does not create a licensed medical professional/patient relationship, between the Proprietary Firm and you and does not constitute an opinion, medical advice, or diagnosis or treatment of any particular condition, but is only provided to assist you with locating appropriate medical care from a qualified practitioner.

4.2 It is hereby expressly clarified that, the Information and reviews that you obtain or receive from the Proprietary Firm, and its employees, contractors, partners, sponsors, advertisers, licensors, users or otherwise on the App is for informational purposes only. We make no guarantees, representations or warranties, whether expressed or implied, with respect to professional qualifications, quality of work, expertise or other information provided on the App. In no event shall we be liable to you or anyone else for any decision made or action taken by you in reliance on such information.

Installing an app does not guarantee having the desired baby. Having the qualities as per your expectation required utmost care, and that depends on many other factors. We would only help you to follow the process through App.

The 'DreamStar Baby' phrase has nothing to do with the gender of the baby, meaning of 'Dream Star Baby' is a baby with specific qualities.

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5. APP CONTENT

5.1 We grant you a limited license to access and make personal use of this App. However, all information, content and material contained in the App is and continues to be the 'Proprietary firm's intellectual property. Further, all trademarks, service marks, trade names, business idea, plan, age segment names, day names and slogans, and trade secrets are proprietary to the Proprietary Firm.

No information, content or material from the App may be copied, reproduced, republished, uploaded, posted, transmitted or distributed in any way without our express written permission. Any unauthorized use terminates the permission or license granted by us in terms of the Agreement. Any unauthorized use for commercial purposes will result in a financial penalty of 25,000 INR per purpose per day that the content is used.

All logos, ideas, brands, marks headings, labels, names, signatures, numerals, shapes or any combinations thereof, appearing in this app, except as otherwise noted, are properties either owned, or used under license, by *Dr. Sonal Jain Jayaswal*, who feature on this app. The use of these properties or any other content on this app, except as provided in these terms and conditions or in the app content, is strictly prohibited.

You may not sell or modify the content of this app or reproduce, display, publicly perform, distribute, or otherwise use the materials in any way for any public or commercial purpose without the respective organization's or entity's written permission.

5.2 You expressly understand and agree that:

The information, content and material on the App and / or Service is provided on an 'as is' and 'as available' basis. The Proprietary Firm and all its affiliates, officers, employees, agents and partners, if any, disclaim all warranties of any kind, either express or implied, including but not limited to, implied warranties on merchantability, fitness for a particular purpose and non-infringement;

The Proprietary Firm does not warrant that (i) The functions contained in any content, information and material on the App, including, without limitation any third-party sites or services linked to the App and / or that the Service will be uninterrupted, timely or error-free, (ii) The defects will be rectified, or that the App or the servers that make such content, information and materials available are free of viruses or other harmful components;

Any material downloaded or otherwise obtained through the App is accessed at your own risk, and you will be solely responsible for any damage or loss of data that results from such download to your computer system; and

The Proprietary Firm cannot and will not assure you that other users of the App are or will be complying with the foregoing rules or any other provisions of these Terms of Use. As between you and the Proprietary Firm, you hereby assume all risk of harm or injury resulting from any such lack of compliance.

5.3 Account Deletion:

The Proprietary Firm is committed to providing users with control over their personal data. Users have the option to delete their accounts directly within the app. This feature ensures that all personal data, including profile information and usage data, is permanently removed from our servers. Users can revoke social network credentials and disable data access between the app and their social network accounts. The account deletion process is designed to be completed entirely within the app, without the need for external steps. All user data is deleted immediately once user deletes the account, data is no longer retrievable, no contract remains and organization is not obliged to retrieve data, no payment or refunds applicable, etc. This policy ensures compliance with data privacy laws and provides users with a transparent and straightforward way to manage their data.

6. REPRESENTATIONS AND WARRANTIES BY THE USERS

By using the App, you represent and warrant that: You are 18 years of age or older and your use of the App will not violate any applicable law or regulation; and

All information provided on the App by you is true, factual and accurate and you agree to maintain the accuracy of such information.

7. CONDITIONS OF USE

7.1 You shall use this App for reasonable and lawful purposes only, and shall not indulge in any activity that is not envisaged through the App.

7.2 Prohibited Conduct : You covenant that you will not:

modify any content of the App;
use app unlawfully;
Harass, threaten, abuse, intimidate other users;
Impersonate someone else spamming other users;
Develop third party app that interacts with the App;
decompile, reverse engineer or disassemble the content;
use the Service in any way that is unlawful or harms the Proprietary Firm or any other person
or entity, as determined in the Proprietary Firm's sole discretion;
make false or malicious statements against the Services or App or the Proprietary Firm;
post, copy, submit, upload, distribute or otherwise transmit or make available any software or
other computer files that contain a virus or other harmful components, or otherwise impair or
damage the App and / or Services or any connected network, or otherwise interfere with any
person or entity's use or enjoyment of the Website and / or the Services;
engage in any form of antisocial, disruptive or destructive acts, including "flaming," "spamming," "flooding," "trolling," and "griefing" as those terms are commonly understood
and used on the internet;
post or upload any content that is libelous, defamatory, abusive, threatening, harassing,
hateful, offensive or otherwise violates any law or right of any third party;
delete or modify any content of the App and / or Services, including but not limited to, legal
notices, disclaimers or proprietary notices such as copyright or trademark symbols, logos,
that you do not own or have express permission to modify; and
host, display, upload, modify, publish, transmit, update or share any information that:
belongs to another person and to which the user does not have any right;
is grossly harmful, harassing, blasphemous, defamatory, obscene, pornographic, pedophilic,
objectionable,
disparaging, relating to or encouraging money laundering or gambling, or otherwise unlawful
in any manner whatever;
harm minors in any way;
infringes any patent, trademark, copyright or other proprietary rights;
violates any law for the time being in force;
deceives or misleads the addressee about the origin of such messages or communicates any
information which is grossly offensive or menacing in nature;
impersonates another person;
threatens the unity, integrity, defense, security or sovereignty of India, friendly relations with
foreign states, or public order or causes incitement to the commission of any cognizable
offence or prevents investigation of any offence or is insulting any other nation.

8. PAYMENT

Payments might be required to access some of the Services. The the Proprietary Firm reserves the right to change any or all parts of its payment policy without notice or liability to the user or any third-party. Payments can be done online via a third-party payment gateway.

9. LINKS TO THIRD-PARTY WEBSITES

9.1 The App includes links to other websites whose terms and privacy practices may differ from those of the Proprietary Firm. The inclusion of a link does not imply any endorsement by the Proprietary Firm of the third-party website, the website's provider, or the information on the third-party website. If the users access or submit personal information to any of those websites, such access and information will be governed by the terms of use and privacy policies of such third-party websites and the Proprietary Firm disclaims all responsibility or liability with respect to the terms, policies or the websites. The users are encouraged to carefully read the terms and privacy policy of any website that they visit.

9.2 As part of the app offered by the Proprietary Firm, you will have an option to join a group operating on the messaging platform 'Whatsapp', 'telegram' etc. where you can Interact with other (collectively "Group Users"). You understand that your use of this group on Whatsapp is optional and is not a mandatory component of the app. You understand that we are not responsible for any information or content shared by you or Group Users. Accordingly, you understand that you may receive objectionable, offensive, explicit content from Group Users and you will not hold us responsible or liable for the same. Notwithstanding the foregoing you covenant not to share any content, photographs, videos or other data that is reasonably deemed to be inappropriate or in contravention of applicable laws. Whatsapp, telegram etc. are a third-party service, not affiliated to the Proprietary Firm. Any use of Whatsapp etc. will require adherence of the relevant terms of service of Whatsapp etc.

10. INDEMNITY

You hereby agree to indemnify, defend and hold the Proprietary Firm, Firm's agents, affiliates, representatives, authorized users, employees and assigns harmless from and against any and all losses, damages, liabilities and costs arising from your use of the App or the Services and / or the violation of the Agreement by you.

11. LIMITATION OF LIABILITY

11.1 You acknowledge and undertake that you are accessing the Services through the App, transacting at your own risk and are using your best and prudent judgment before entering into any transactions through the App.

11.2 You understand, agree and acknowledge that you will be entitled only to the services including the facilities, products, medical procedures mentioned in the app.

Notwithstanding any recommendation by a Service Provider to carry out an additional medical procedure, you agree and acknowledge that the cost of the same will be borne by you and the Proprietary Firm shall not be liable to reimburse you for the same.

11.3 To the fullest extent permitted by law, under no circumstances will the the Proprietary Firm be liable to you or any other person or entity for any direct, indirect, incidental, special, remote or consequential damages, including but not limited to damages for loss of profits, goodwill, data or other intangible losses, resulting from any circumstances, including:

the use or the inability to use the Services; or unauthorized access to or alteration of your transmissions or data; or any other matter relating to the App and / or Services. whether or not foreseeable, and whether or not the the Proprietary Firm has been advised of the possibility of such damages.

11.4 We shall neither be liable nor responsible for any actions or inactions of the other users of the App nor any breach of conditions, representations or warranties by them. We do not take any obligation to mediate or resolve any dispute or disagreement between you and the other users of the App.

11.5 Further, none of the officers or employees of the Proprietary Firm shall be personally liable for any action in connection with the App or the Services.

12. RESTRICTIONS

Your personal and non-commercial use of the App shall be subjected to the following restrictions:

you may not modify any content of the App; you may not decompile, reverse engineer, or disassemble the content; or you may not remove any copyright, trademark registration, or other proprietary notices from the App. You further agree not to access or use the Website in any manner that may be harmful to the operation of the Website or its content.

13. TERMINATION

In case of non-compliance with the Terms of Use or Privacy Policy or in the event any other user reports a violation of any of their rights as a result of your use of the Services, the Proprietary Firm reserves the right to immediately suspend or terminate your access to the App with or without notice to you; and to remove such non-compliant information from the App; and to exercise any other remedy available under law.

Any suspected illegal, fraudulent or abusive activity will be grounds for terminating your access to the App. Upon suspension or termination, your right to avail the Services and access to the App will immediately cease and the Proprietary Firm reserves the right to remove or

delete your information that is available, including but not limited to login, account information and information posted by you.

14. ACCESS OUTSIDE THE REPUBLIC OF INDIA

The Proprietary Firm makes no representation that the content contained on the App is appropriate to be used or accessed outside the Republic of India. If the users use or access the App from outside the Republic of India, they do so at their own risk and are responsible for compliance with the laws of such jurisdiction. These Terms of Use do not constitute, nor should they be used for or in connection with, any promotional activities or solicitation by anyone in any jurisdiction in which such promotional activities or solicitation is not authorized or to any person to whom it is unlawful to promote or solicit.

15. APPLICABLE LAW

You agree that the interpretation of this Agreement and the resolution of any disputes arising under these Terms of Use shall be governed by the laws of India.

This contract is subject to the Indian Information Technology Act, 2000. This policy and your use of the App, website etc., along with the Information contained therein, shall be governed by and construed in accordance with the laws of the State of Maharashtra, India without regard to conflict of laws principles, and You agree to submit to the jurisdiction of courts in the Nagpur, State of Maharashtra, India. You further agree that any claims or causes of action arising out of or related to this Agreement and the App, website etc., along with the Information contained therein, shall be filed within one (1) month after such claim or cause of action arose, or such claim or cause of action shall be forever barred.

16. ARBITRATION

Any dispute, claim or controversy arising out of or relating to this notice or the breach, termination, enforcement, interpretation or validity thereof, including the determination of the scope or applicability of these Terms of Use to arbitrate, or to your use of the App or the Service or information to which it gives access, shall be determined by arbitration in India, before a sole arbitrator. The arbitration shall be conducted in accordance with the Arbitration and Conciliation Act, 1996. The seat of such arbitration shall be Nagpur, Maharashtra, India. All proceedings of such arbitration, including, without limitation, any awards, shall be in the Hindi or English language. The award shall be final and binding on the Parties.

17. REPORT ABUSE

In the event you come across any abuse or violation of the Terms of Use or if you become aware of any objectionable content on the Website, please report to Email : contact@dreamstarbaby.com

18. PRIVACY POLICY

In addition to these Terms of Use, we have also published the Privacy Policy which sets out the privacy practices of the Website. The Privacy Policy has been published in accordance with the provisions of the Information Technology Act, 2000 and the applicable rules made thereunder. In accessing this Website and availing the Services provided herein, you confirm that you have read, fully understand and accept the Privacy Policy.

19. NEWSLETTERS AND COMMUNICATIONS

You hereby expressly agree to receive communications and newsletters from the Proprietary Firm by SMS, Whatsapp and e-mails. You can unsubscribe / opt-out from receiving communications and newsletters from the Proprietary Firm at any time by following the procedure set forth in the App.

20. GRIEVANCE OFFICER

If you have any grievance with respect to the App or the Services, including any discrepancies and grievances with respect to the processing of information, you can contact our Grievance Officer at E-mail : contact@dreamstarbaby.com

21. SEVERABILITY

If any provision of these Terms of Use is held by a court of competent jurisdiction or arbitral tribunal to be unenforceable under applicable law, then such provision shall be excluded from these Terms of Use and the remainder of these Terms of Use shall be interpreted as if such provision were so excluded and shall be enforceable in accordance with its terms; provided however that, in the such event these Terms of Use shall be interpreted so as to give effect, to the greatest extent consistent with and permitted by applicable law, to the meaning and intention of the excluded provision as determined by such court of competent jurisdiction or arbitral tribunal.

22. NOTICES

All notices and other communications required or permitted hereunder to be given to a Party shall be in writing, in the Hindi or English language, and shall be sent by e-mail, or mailed by prepaid internationally-recognized courier, or otherwise delivered by hand or by messenger, addressed to such Party's address as set forth below or at such other address as the Party shall have furnished to the other Party in writing in accordance with this provision:

If to the Proprietary Firm : Email ID : contact@dreamstarbaby.com If to you: at the email address provided by you to us when you registered as a user.

23. WAIVER

No term of these Terms of Use shall be deemed waived and no breach excused, unless such waiver or consent shall be in writing and signed by the Proprietary Firm. Any consent by the Firm to, or waiver of a breach by you, whether expressed or implied, shall not constitute consent to, waiver of, or excuse for any other different or subsequent breach.

24. ELECTRONIC RECORD

This document is an electronic record in terms of the Information Technology Act, 2000 ('IT Act') and the rules made thereunder as may be applicable, and the amended provisions pertaining to electronic records in various statutes as amended by the IT Act. This electronic record is generated by a computer system and does not require any physical or digital signatures. This document is published in accordance with the provisions of the IT Act and the rules made thereunder that require publishing the rules and regulations, privacy policy and terms of use of the Website.

25. OTHER TERMS & CONDITIONS

(a) If you get any direct or indirect physical, mental or any other problems by using or overusing this app or our products, we are not responsible for that.

(b) Our all services are just suggestions. All couples, mothers, fathers, and backgrounds of the family are different. 'One solution for all.' is impossible. So go by the trial and error method with patience. Don't do anything if you are not happy and ready for that. Don't think or feel that 'I am unable to do this all, so my unborn child will not completely develop.' Whatever you do as per your time, mood, capacity and circumstance, believe it satisfactory.

(c) If you enter to any other site, while browsing our app-content, you are responsible for that.

(d) This app is for your personal use only. Don't forward anything to anyone by any media.

(e) There are some pre-recorded materials in our App. And we are using some materials from other sources like websites, YouTube etc. We are trying our best for quality & material, but we are dependent on certain verticals, so you must accept all things.

(f) You cannot download or forward our any materials.

(g) Please note that our App's primary language is Hindi & English, if you do not get some material in your selected app language, you must accept.

(h) We are intentionally repeating some important materials in App for unborn child development purposes. You have to accept that.

(i) If you face any technical or other problem, you have to give us 7 working days for that. We will try to resolve your problem as soon as possible.

(j) In case of Application loading or internet problem or device problems, you have to be patient and supportive. Some devices are not technically supporting our App; you can change that device if you want less use of our App. Or You may contact us; we will try to resolve it.

(k) You cannot see some materials of our App in some countries or areas of the world because of restrictions by some sources or countries. You have to accept that. And have to be contented with the rest of the material.

(l) Please do your payment only when your internet connectivity is proper and wait till the 'Payment done successfully' message. If payment is done and you find App's particular section is not opened, send the screen-shoot of the 'payment done' page on: contact@dreamstarbaby.com. We will resolve this issue as soon as possible and will start your plan manually.

(m) Yoga, Pranayama, Exercises, Diet and all things is just suggestions. You have to follow as per your health conditions and pregnancy doctor does suggest. If they say not to do exercise and all, please avoid.

(n) Photos, videos, reviews, etc. all, given by you or collected or filmed by the Proprietary Firm will be the intellectual property of Dr. Sonal Jain Jayaswal. Dr. Sonal Jain Jayaswal can use those things, and delete those things as their requirement on their books, app, social media, or at any other place. All the rights to that content are reserved by the Proprietary Firm only. This is a free-of-cost service to society by both of us.

(o) The Proprietary Firm can provide all its online services till its existence only. If the Proprietary Firm will be closed, then the client will not get that all. If there is some change in pricing or structure of the courses, you have to co-operate fully.

(p) The Application Provider may update the Information at any time without notice in the Application Provider's sole and absolute discretion. The Application Provider reserves the right to make alterations or deletions to the Information at any time without notice.

(q) The Licensed Application is protected by Intellectual Property right, India. The Application Provider hereby reserves any and all intellectual property rights in the Licensed Application. You and the Application Provider acknowledge that, in the event of any third party claim that the Licensed Application or Your possession and use of the Licensed Application infringes that third party's intellectual property rights, the Application Provider, not Google Inc., will be solely responsible for the investigation, defense, settlement and discharge of any such intellectual property infringement claim. Content used in the Application is for educational purposes only. Actual images, videos, audios and text represented in Application belong to their legitimate owners.

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You may not sell or modify the content of this APP or reproduce, display, publicly perform, distribute, or otherwise use the materials in any way for any public or commercial purpose without the respective organization's or entity's written permission.

26. COMPLETE UNDERSTANDING

These Terms of Use contain the entire understanding of the Parties, and there are no other written or oral understandings or Promises between the Parties with respect to the subject matter of these Terms of Use other than those contained or referenced in these Terms of Use.

The Application Provider may, in the Application Provider's sole and absolute discretion, modify the terms and conditions of this Agreement in whole or in part at any time for any reason without any notice to You, whether prior or otherwise. Such modified terms and conditions shall supersede these terms and conditions and shall become binding when published on the Licensed Application.

We are happy to hear your valuable suggestions.

CONTACT DETAILS

Mobile No. : 703096230

Email ID : contact@dreamstarbaby.com

Address:

Shivlok, J.P. Height Building, 8th Floor, B Wing, Near
Gondwana Square, Bairamji Town, Nagpur - 440013,
India. Website: www.dreamstarbay.com Email:
contact@dreamstarbaby.com Contact us: 7030962300
(Between 10 am to 6 pm, Sunday and public holidays
closed.)

All suggestions will be welcomed some may be accepted.

Lots of Prayers: By the Vedic and Scientific knowledge of Grabh Sanskar. All may get a Divine Dream Star Baby.